

STATE OF NEW YORK

5858--D

2025-2026 Regular Sessions

IN ASSEMBLY

February 24, 2025

Introduced by M. of A. BORES, LEE -- read once and referred to the Committee on Consumer Affairs and Protection -- recommitted to the Committee on Consumer Affairs and Protection in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee -- reported and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to requiring third-party food delivery services to verify that any limited-use motorcycle or motor vehicle operated by workers in the course of such delivery service is legally registered

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "moped
2 registration verification act".

3 § 2. Subdivision 1 of section 391-v of the general business law is
4 amended by adding a new paragraph (e) to read as follows:

5 (e) "Worker" means a natural person who is hired or retained as an
6 independent contractor by a delivery business to make deliveries in
7 exchange for compensation.

8 § 3. Section 391-v of the general business law is amended by adding a
9 new subdivision 3 to read as follows:

10 3. (a) A third-party food delivery service shall verify that any work-
11 er who elects to operate a limited-use motorcycle, as such term is
12 defined by section one hundred twenty-one-b of the vehicle and traffic
13 law, in the course of making deliveries for such third-party food deliv-
14 ery service has registered such limited-use motorcycle pursuant to

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 section twenty-two hundred sixty-one of the vehicle and traffic law or
2 registered pursuant to the applicable laws of another state.

3 (b) A third-party food delivery service shall verify that any worker
4 who elects to operate a motor vehicle, as such term is defined by
5 section one hundred twenty-five of the vehicle and traffic law, in the
6 course of making deliveries for such third-party food delivery service
7 has registered such motor vehicle pursuant to section four hundred one
8 of the vehicle and traffic law or registered pursuant to the applicable
9 laws of another state. A third-party food delivery service may satisfy
10 the requirements of this paragraph if, as a condition in its agreement
11 with the worker, the third-party delivery service shall require that the
12 worker has registered the motor vehicle the worker elects to operate in
13 the course of making deliveries for such third-party food delivery
14 service pursuant to the vehicle and traffic law or to the applicable
15 laws of another state.

16 (c) A third-party food delivery service shall record each such verifi-
17 cation required by paragraph (a) or (b) of this subdivision and retain
18 such record for at least one year following the termination of such
19 worker's employment by or engagement with such third-party food delivery
20 service.

21 (d) A third-party food delivery service shall not sell, share, or
22 allow access to such information collected and maintained pursuant to
23 this section unless required to comply with federal, state, or local
24 laws, rules, or regulations.

25 (e) Provided, however, that nothing contained in this subdivision
26 shall be deemed to supersede the provisions of article forty-four-b of
27 the vehicle and traffic law.

28 § 4. This act shall take effect on the one hundred eightieth day after
29 it shall have become a law.